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Alabama Expungement Agent Training Reference

A complete operational knowledge base for clearing criminal records in Alabama: the Title 15 Chapter 27 expungement statutes as expanded by the 2021 REDEEMER Act, covering non-conviction records, nonviolent misdemeanor convictions, pardoned felonies, the exclusion lists, the per-person limits, procedure through the circuit court and ALEA, fees, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Alabama (criminal division of the circuit court of the county; ALEA archive)
Primary statutes	Ala. Code Title 15, Ch. 27: § 15-27-1 (misdemeanor), § 15-27-2 (felony), § 15-27-2.1 (limits)
Controlling change	2021 REDEEMER Act (Acts 2021-286 / 2021-482) — added conviction expungements (eff. 7/1/2021)
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects Ala. Code Ch. 27 as amended through the 2024–2025 sessions

VERIFY BEFORE RELYING

Alabama uses “expungement” (Ala. Code Title 15, Chapter 27) and it is **ALWAYS** by petition — there is no automatic relief. The original 2014 law reached only non-conviction records; the 2021 REDEEMER Act (Record Expungement Designed to Enhance Employment and Eliminate Recidivism) added, for the first time, expungement of certain **CONVICTIONS** — nonviolent misdemeanors after 3 years and **PARDONED** felonies after 180 days. Two statutes split the work: § 15-27-1 (misdemeanors/violations/traffic/ordinances) and § 15-27-2 (felonies), with § 15-27-2.1 capping how many expungements a person can get. The filing fee is high (\$500 per petition), excluded categories are broad (violent, sex, moral-turpitude, serious-traffic offenses), and law enforcement retains access after expungement. The agent must verify the current statute, waiting period, and limits before relying on any rule.

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How the agent should use this document

Alabama routes by disposition and offense level, across two parallel statutes. (1) **Non-conviction records** are the most accessible; a charge dismissed WITH prejudice, no-billed by a grand jury, or resulting in not-guilty can be expunged after 90 days; a charge dismissed WITHOUT prejudice (and not refiled) after 1 year for a misdemeanor or 5 years for a felony; and charges resolved through a drug, mental-health, veterans, or deferred-prosecution program after successful completion. (2) **Convictions** (added by the 2021 REDEEMER Act): a nonviolent MISDEMEANOR/violation conviction after 3 years (§ 15-27-1(b)), and a PARDONED felony after 180 days (§ 15-27-2(c)). (3) **Human-trafficking victims** have a special, broader pathway. The agent should (1) determine non-conviction vs. conviction; (2) pick § 15-27-1 (misdemeanor) or § 15-27-2 (felony); (3) apply the waiting period and the § 15-27-2.1 per-person limit; and (4) screen the exclusion list (violent, sex, moral-turpitude, serious-traffic).

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Statutory shorthand used throughout

Ala. Code § 15-27-1	Expunge a MISDEMEANOR / violation / traffic / ordinance — charges and (b) convictions
§ 15-27-2	Expunge a FELONY — non-conviction charges and (c) pardoned-felony convictions
§ 15-27-2.1	LIMITS on the number of expungements a person may be granted
§ 15-27-4	The administrative filing FEE and the indigency waiver
§ 15-27-6	The ORDER of expungement; certification; who may inspect expunged records
§ 12-25-32	Defines VIOLENT OFFENSE (excluded, with narrow exceptions)
§ 15-20A-5	Defines SEX OFFENSE (excluded)
§ 17-3-30.1	Defines crime of MORAL TURPITUDE (excluded)
ALEA	Alabama State Law Enforcement Agency — holds the criminal history and the archive

1. Eligibility rules

Two statutes (misdemeanor § 15-27-1, felony § 15-27-2), each covering non-conviction records and a narrow band of convictions.

Non-conviction records (both statutes)

The original and most accessible relief — the same triggers appear in both § 15-27-1(a) (misdemeanor) and § 15-27-2(a) (felony):

- **Dismissed WITH prejudice** — eligible after more than 90 days.
- **No-billed by a grand jury** — eligible after more than 90 days.
- **Found not guilty** at trial — eligible after more than 90 days.
- **Nolle prossed / dismissed WITHOUT prejudice and not refiled** — after more than 1 year (misdemeanor) or 5 years (felony), with no disqualifying conviction in the interim.
- **Successful completion of a court program** — drug court, mental-health court, veterans court, or a court-approved deferred-prosecution / diversion program (petition generally 1 year after completion).
- **Indictment quashed** and similar dispositions.

Conviction expungements (added by the 2021 REDEEMER Act)

- **Nonviolent MISDEMEANOR / violation / traffic / ordinance conviction (§ 15-27-1(b))**: eligible 3 years after the date of conviction, with all probation/parole, fines, costs, and restitution completed, and the offense not excluded (not violent, sex, moral-turpitude, or serious-traffic).
- **PARDONED felony conviction (§ 15-27-2(c))**: eligible 180 days after the certificate of pardon issues, where the conviction is not a violent offense (with limited exceptions) and not otherwise excluded.
- **Reclassified felony (Act 2015-185)**: a crime that was a felony at conviction but reclassified as a misdemeanor may be reachable where the person has been arrest-free (excluding minor traffic) for 15 years.

Human-trafficking victims (special pathway)

- A person may expunge a misdemeanor or felony offense (even some otherwise-excluded ones) on proving by a preponderance of the evidence that they were a victim of human trafficking, committed the offense during that period, and would not have committed it but for being trafficked. This pathway is not subject to the usual per-person caps.

AGENT GUIDANCE

Route by disposition first: non-conviction (90 days, or 1/5 years for without-prejudice) vs. conviction (nonviolent misdemeanor at 3 years; pardoned felony at 180 days). Then pick § 15-27-1 (misdemeanor) or § 15-27-2 (felony).

Flag the trafficking-victim pathway when relevant — it can reach offenses that are otherwise excluded and isn't subject to the normal caps.

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2. Waiting periods

Conviction waits run from the date of conviction (or, for a pardoned felony, from the pardon certificate); non-conviction waits run from the disposition.

Disposition	Statute	Waiting period	Note
Dismissed with prejudice	15-27-1/2(a)	90 days	Both misd. and felony
No-billed by grand jury	15-27-1/2(a)	90 days	—
Found not guilty	15-27-1/2(a)	90 days	—
Dismissed w/o prejudice — misdemeanor	15-27-1(a)	1 year	Not refiled; clean interim
Dismissed w/o prejudice — felony	15-27-2(a)	5 years	Not refiled; clean interim
Court-program completion	15-27-1/2(a)	~1 year after completion	Drug/MH/veterans/deferred
Nonviolent misdemeanor CONVICTION	15-27-1(b)	3 years	From date of conviction
PARDONED felony conviction	15-27-2(c)	180 days	From pardon certificate
Reclassified felony (Act 2015-185)	15-27-1/2	15 years arrest-free	Narrow pathway

Across all conviction pathways, the petitioner must first have completed every term of the sentence — all probation or parole, and payment of all fines, court costs, restitution, and other court-ordered amounts — before the waiting clock is treated as satisfied (the indigency provisions of § 15-27-4 can affect the fee, but not the requirement that ordered amounts be resolved). For non-conviction “without prejudice” dispositions, the person must also have stayed free of disqualifying convictions during the 1-year (misdemeanor) or 5-year (felony) window and the charge must not have been refiled.

AGENT GUIDANCE

Anchor conviction waits correctly: 3 years from the conviction date for a nonviolent misdemeanor, 180 days from the pardon for a pardoned felony. Confirm all fines/costs/restitution are paid before counting the wait as met.

For a charge dismissed without prejudice, the clock is 1 year (misdemeanor) or 5 years (felony), and only if it wasn't refiled and the person stayed conviction-free.

3. Disqualifying / excluded offenses

For CONVICTION expungements, eligibility turns on the offense not falling into an excluded category. The exclusions are broad.

Categorically excluded (conviction expungements)

- **Violent offenses** as defined in § 12-25-32 — excluded (with a narrow exception for certain offenses committed as a trafficking victim).
- **Sex offenses** as defined in § 15-20A-5 — excluded (trafficking-victim exception aside).
- **Crimes involving moral turpitude** as defined in § 17-3-30.1 — excluded for misdemeanor-conviction expungement (subject to the reclassified-felony 15-year provision).
- **Serious traffic offenses** under Article 9 of Chapter 5A of Title 32 — including DUI — excluded.
- **Commercial-driver offenses** (49 C.F.R. § 383.51) where the person held a CDL/CLP or was operating a commercial vehicle at the time — excluded.

Limits on the number of expungements (§ 15-27-2.1)

- **Unlimited** expungements for most NON-conviction dispositions (the (a)(1)–(a)(5), (a)(7), (a)(8) triggers in both statutes, and § 15-27-2(b)).
- **One** expungement for a pardoned-felony conviction (§ 15-27-2(c)).
- **Two** expungements for misdemeanor convictions and for court-program-completion dispositions (the (a)(6) and § 15-27-1(b) categories).
- **One expungement = all charges from the same arrest or incident**, so a single multi-count arrest counts once against the cap.

Other prerequisites and limits

- **All court-ordered amounts paid** (fines, costs, restitution) and probation/parole completed.
- **No pending charges** and (for without-prejudice dismissals) a clean interim record.
- **Petition-only.** Alabama has no automatic expungement — every record requires a filed petition.
- **Out-of-state / federal** convictions are not reachable by Alabama expungement.

VERIFY BEFORE RELYING

The excluded categories are defined by cross-referenced statutes (§ 12-25-32 violent, § 15-20A-5 sex, § 17-3-30.1 moral turpitude, Title 32 serious-traffic) and the § 15-27-2.1 caps are intricate and were set by the 2021 REDEEMER Act. The agent must map each offense to its Alabama classification, screen against the exclusion lists, and check the per-person cap before declaring eligibility — and verify current text, since these provisions have been amended repeatedly.

AGENT GUIDANCE

Screen conviction petitions against the four exclusions first: violent (§ 12-25-32), sex (§ 15-20A-5), moral turpitude (§ 17-3-30.1), and serious-traffic/DUI. Any of these defeats a conviction expungement.

Track the § 15-27-2.1 caps: two misdemeanor-conviction expungements, one pardoned felony, but unlimited for most non-conviction records. Count a multi-count arrest as one.

4. Case outcome rules

Disposition and offense level drive the statute, the wait, and the per-person cap. This table is the agent's primary routing logic for Alabama.

Case outcome	Statute	Wait	Cap (§ 15-27-2.1)
Dismissed with prejudice / no-bill / not guilty	15-27-1/2(a)	90 days	Unlimited
Dismissed w/o prejudice — misd.	15-27-1(a)	1 year	Unlimited
Dismissed w/o prejudice — felony	15-27-2(a)	5 years	Unlimited
Court-program completion	15-27-1/2(a)(6)	~1 year	Two
Nonviolent misdemeanor conviction	15-27-1(b)	3 years	Two
Pardoned felony conviction	15-27-2(c)	180 days	One
Trafficking-victim offense	15-27-1/2(a)(8)	On proof	Not capped
Violent / sex / moral-turpitude / serious-traffic conviction	—	Not eligible	—

Effect of relief (§ 15-27-6): once an expungement order is granted, the proceedings are deemed never to have occurred, and the person may lawfully deny or fail to acknowledge the arrest, charge, or conviction in most contexts (with statutory exceptions, e.g., applications to law enforcement and certain licensing or when testifying). The records are removed from public access and the offense is withdrawn from the national repository, but ALEA ARCHIVES the records and law enforcement, prosecutors, and certain agencies retain limited access (§§ 15-27-7, 15-27-8). The relief reaches Alabama records only.

AGENT GUIDANCE

Tell users the expungement is strong in everyday life — the matter is deemed never to have occurred and drops off public background checks — but ALEA keeps an archived copy and law enforcement and some agencies still see it.

Match the statute, wait, and cap together: e.g., a nonviolent misdemeanor conviction is § 15-27-1(b), 3-year wait, and counts against the two-expungement cap.

5. Required forms

Alabama expungements are filed in the criminal division of the circuit court of the county where the charges were filed, using the Administrative Office of Courts (AOC) expungement forms, with a mandatory ALEA-certified criminal history record attached.

Core components of an Alabama expungement filing

- 1 Petition for Expungement** (the AOC expungement petition) — identifying the petitioner, the case (court, charge, statute, case/CC number), the disposition, and the statutory basis (§ 15-27-1 misdemeanor or § 15-27-2 felony, and the specific subdivision).
- 2 Sworn statement** (§ 15-27-3) — the petitioner's sworn statement that the case is eligible and that they have no disqualifying pending charges or prior expungements beyond the caps.
- 3 Certified ALEA criminal history record** — the petition must be accompanied by the official ALEA background check, which the petitioner requests and pays for in advance.
- 4 Filing fee or indigency declaration** (§ 15-27-4) — the \$500 administrative filing fee, or a request for a fee waiver based on indigency.
- 5 Proposed Order of Expungement** (§ 15-27-6) — the order the judge signs directing ALEA and the agencies to expunge and archive the records.

AGENT GUIDANCE

Use the AOC expungement petition for the correct statute (§ 15-27-1 vs. § 15-27-2) and attach the certified ALEA criminal history — a petition without the ALEA record is routinely rejected.

Pair the petition with the sworn statement and the proposed order; have the \$500 fee or an indigency declaration ready.

6. Filing instructions

- 1 Get the record.** Request the official ALEA criminal history record (and the court file) to confirm each charge, the disposition, the offense classification, and the conviction or completion dates.
- 2 Confirm the statute and eligibility.** Non-conviction vs. conviction; § 15-27-1 (misdemeanor) vs. § 15-27-2 (felony); the waiting period; the § 15-27-2.1 cap; that all fines/costs/restitution are paid and probation/parole completed; and that the offense is not excluded.
- 3 Prepare the petition, sworn statement, and proposed order** citing the exact statute and subdivision, and attach the certified ALEA criminal history record.
- 4 File in the criminal division of the circuit court** of the county where the charges were filed, and pay the \$500 administrative filing fee (§ 15-27-4) or file an indigency declaration for a waiver.
- 5 Service (§ 15-27-3).** Serve the district attorney and the law-enforcement / arresting agency and (where applicable) the victim; they have a window to object.
- 6 Objection / hearing (§ 15-27-5).** If the DA, a victim, or law enforcement objects within the statutory period, the court holds a hearing; if there is no objection, the court may rule on the petition without a hearing.
- 7 Order and archive (§§ 15-27-6 to 15-27-8).** If granted, the court enters the Order of Expungement; the records are withdrawn from the national repository and public access, and ALEA archives them. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the circuit court of the county where the charges were FILED. The certified ALEA criminal history must be attached up front, and the \$500 fee (or an indigency declaration) is required per petition. Build in service on the DA and arresting agency — their objection window drives whether a hearing is set.

7. Court-specific quirks

- **Petition-only, no automatic relief.** Every Alabama expungement requires a filed petition; nothing clears by operation of law.
- **Two statutes.** § 15-27-1 governs misdemeanors/violations/traffic/ordinances; § 15-27-2 governs felonies. Pick the right one and the right subdivision.
- **2021 REDEEMER Act.** For the first time, certain CONVICTIONS can be expunged — nonviolent misdemeanors (3 years) and pardoned felonies (180 days). Older guides predating July 2021 are unreliable.
- **High fee.** The administrative filing fee is \$500 per petition (indigency waiver available) — among the most expensive in the country.
- **Per-person caps (§ 15-27-2.1).** Unlimited for most non-conviction records, two for misdemeanor convictions, one for a pardoned felony; one expungement covers all charges from the same arrest.
- **Certified ALEA record required.** The petition must include the official ALEA criminal history.
- **Broad exclusions.** Violent (§ 12-25-32), sex (§ 15-20A-5), moral-turpitude (§ 17-3-30.1), and serious-traffic/DUI offenses cannot be expunged as convictions.
- **Records archived, not destroyed.** ALEA keeps an archive and law enforcement retains limited access even after expungement.
- **Trafficking-victim pathway** can reach otherwise-excluded offenses and is not subject to the caps.

AGENT GUIDANCE

Lead with the cost and the cap: the \$500 fee per petition and the limited number of conviction expungements mean petitioners should prioritize which records to clear.

Confirm the matter is post-July-2021 framing — conviction expungement didn't exist before the REDEEMER Act, so a user's older understanding may be wrong.

8. Fee information

Item	Amount	Note
Administrative filing fee (§ 15-27-4)	\$500 per petition	Among the highest nationally
Indigency waiver	\$0	Available on a declaration of indigency
Certified ALEA criminal history	ALEA fee	Required attachment; requested in advance
Additional court costs	Varies	Service and certified-copy costs may apply
Attorney fees (if represented)	Varies	Not required; legal-aid clinics assist

Cost is a real barrier in Alabama. The administrative filing fee is \$500 per petition (§ 15-27-4) — and because one petition covers only the charges from a single arrest or incident, a person with multiple incidents may face \$500 for each. The petitioner must also obtain and pay for the certified ALEA criminal history record that the petition requires. An indigency waiver is available for those who cannot afford the fee, and legal-aid organizations and expungement clinics assist eligible petitioners. Because the conviction-expungement caps are low (two misdemeanors, one pardoned felony), it is worth prioritizing which records to clear first.

AGENT GUIDANCE

Quote the \$500-per-petition fee plainly and note the indigency waiver — cost is often the deciding factor in Alabama, especially across multiple incidents.

Because a petition covers one arrest/incident and the conviction caps are low, help users sequence which records give the most benefit per \$500.

9. Criminal history (ALEA) request process

The certified ALEA criminal history is both step one of eligibility analysis and a required attachment to the petition.

A. Statewide history — Alabama State Law Enforcement Agency (ALEA)

- ALEA maintains the state criminal history; the petitioner requests an official background check (typically fingerprint-based) and pays the ALEA fee.
- The certified ALEA record must accompany the expungement petition, and after a granted order ALEA archives the records and withdraws them from the national repository (§§ 15-27-7, 15-27-8).

B. Court records — circuit / district / municipal court

- The court where the charge was filed holds the case file; circuit-court criminal divisions handle the expungement petition, and municipal/district records may be needed for ordinance or lower-court matters.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Alabama, the FBI fingerprint-based Identity History Summary is the federal equivalent; Alabama expungement reaches Alabama records only.

VERIFY BEFORE RELYING

ALEA request methods and fees, and the AOC expungement-form versions, can change. The agent should verify the current ALEA criminal-history request process and fee, and the current AOC petition forms, at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the certified ALEA criminal history as step one — it both fixes eligibility and is a required attachment, so the user should request it early. Direct users to the circuit court of the county where the charges were filed for the petition.

10. Sample petitions and completed examples

Alabama expungements are filed on the AOC petition in the circuit court. The examples below show structure and key recitals. Names, dates, and identifiers are fictional and illustrative.

Example A — Petition to Expunge a Nonviolent Misdemeanor Conviction (§ 15-27-1(b))

IN THE CIRCUIT COURT OF MONTGOMERY COUNTY, ALABAMA

CRIMINAL DIVISION

IN RE: PETITION OF ANDRE L. CARTER Case No. CC-2019-001234

PETITION FOR EXPUNGEMENT (Ala. Code § 15-27-1(b))

1. Petitioner: Andre L. Carter; DOB 07/22/1992.
 2. On 03/14/2019, in this county, petitioner was convicted of Theft of Property 3rd (a Class A misdemeanor), § 13A-8-5.
 3. More than THREE years have passed since the conviction.
 4. All probation, fines, court costs, and restitution have been completed/paid, as evidenced by the court record.
 5. The conviction is NOT a violent offense (§ 12-25-32), a sex offense (§ 15-20A-5), a crime of moral turpitude (§ 17-3-30.1), or a serious traffic offense (Title 32, Ch. 5A, Art. 9).
 6. This is within petitioner's two-expungement cap for misdemeanor convictions under § 15-27-2.1.
 7. The certified ALEA criminal history record is attached, and the \$500 filing fee is paid (or indigency declaration filed).
- WHEREFORE petitioner requests an Order of Expungement under § 15-27-6 directing ALEA and all agencies to expunge and archive the records. (Served on the District Attorney.)

Examples B, C & D — Other pathways

B. NON-CONVICTION (§ 15-27-1(a) / § 15-27-2(a)):

A charge dismissed WITH prejudice, no-billed, or resulting in NOT GUILTY may be expunged after 90 days. A charge dismissed WITHOUT prejudice (not refiled) may be expunged after 1 year (misdemeanor) or 5 years (felony). Unlimited under the cap.

C. PARDONED FELONY (§ 15-27-2(c)):

A felony conviction may be expunged 180 days after the certificate of pardon issues, if not a violent offense and not otherwise excluded. Limited to ONE such expungement.

D. HUMAN-TRAFFICKING VICTIM (§ 15-27-1/2(a)(8)):

On proof by a preponderance that petitioner was trafficked, committed the offense during that period, and would not have but for being trafficked, even some otherwise-excluded offenses may be expunged; not subject to the usual caps.

Order of Expungement

The petition is accompanied by a proposed Order of Expungement (§ 15-27-6). On entry, the order directs ALEA and the named agencies to expunge the records, withdraw them from the national repository, and archive them; under the statute the proceedings are deemed never to have occurred, and the petitioner may lawfully

deny the arrest, charge, or conviction (subject to the statutory exceptions, and to law enforcement's retained access).

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Alabama's expungement statutes and common practice and is not legal advice. Alabama expanded relief through the 2021 REDEEMER Act (Acts 2021-286 / 2021-482) to add conviction expungements; expungement is always by petition with a \$500 fee, broad exclusions, and per-person caps, and ALEA retains an archive. The agent must verify the current text of Ala. Code Title 15, Chapter 27 (§§ 15-27-1, 15-27-2, 15-27-2.1, 15-27-4), the excluded-offense definitions, the AOC forms, ALEA processes, and current fees before relying on any rule here.